Responsible Administrator: VP Admin/Finance
Responsible Office: Human Resources
Effective Date: 06/30/2014
Approved by: President
Date Reviewed (no substantive changes): 10/29/2024

Nepotism Policy

Policy Statement

It shall be the policy of Southeastern Louisiana University to conform to the provisions of the uniform code of Governmental Ethics, R.S. 42:1101 et seq (hereafter referred to as the code), which became effective on April 1, 1980 with regard to nepotism within the University.

Purpose of Policy

To ensure the University shall be in full compliance with the Code of Governmental Ethics regulation on nepotism found in Louisiana Revised Statutes 42:1119. The Board may authorize employment of persons from the same economic unit or the same immediate family when allowed by law. The Board defines economic unit, immediate family and any other relevant terms pursuant to the definitions found in the Code of Governmental Ethics in Louisiana Revised Statues 42:1102, or as interpreted by the Louisiana Board of Ethics. No interpretation of this section shall at any time conflict with the Governmental Code of Ethics or any other related statue.

The general provisions of Louisiana Revised Statutes 42:1119 state that no member of the immediate family of an agency head may be employed in his/her agency. An “agency head” is the chief executive or administrative officer of an agency OR any member of a board or commission who exercises supervision over the agency. If a person qualifies as an agency head, then the following family members may not be employed in his/her agency because they classify as members of his/her immediate family:

- Children
- Spouses of children (daughters-in-law, sons-in-law)
- Brothers and sisters
- Spouses of brothers and sisters (added by 1999 legislative amendment)
- Parents
- Spouse
- Parents of spouse (mother-in-law, father-in-law)

Additionally, the Code of Governmental Ethics, Part II Ethical Standards for Public Servants, Section 1112 states that no public servant, except as provided in R.S. 42:1120, shall participate in a transaction involving the governmental entity in which to his actual knowledge, any of the following persons has a substantial economic interest:

- Any member of his immediate family
- Any person (legal entity) in which he has a substantial economic interest of which he may reasonably be expected to know.
- Any person (legal entity) of which he is an officer, director, trustee, partner, or employee.
- Any person (legal entity) with whom he is negotiating or has an arrangement concerning prospective employment.

- Any person (legal entity) who is a party to an existing contract with such public servant, or with any legal entity in which the public servant exercises control or owns an interest in excess of twenty-five percent, or who owes anything of economic value to such public servant, or to any legal entity in which the public servant exercises control or owns an interest in excess of twenty-five percent, and who by reason thereof is in a position to affect directly the economic interests of such public servant.

Applicability

This policy applies to all employees of Southeastern Louisiana University.

Policy Procedure

Agency heads should carefully review employment of extended family members to determine whether the employment will economically benefit a member of the employee's immediate family (for example, whether the employment of a niece or nephew will benefit economically a brother/sister of the agency head).

[End of Policy]